CRIMINAL LAW I

I. M. Gutierrez III

All cases must be read in the original. Articles in the Revised Penal Code or provisions of special laws along with the corresponding chapters in Reyes must be read along with the cases.

Final Grade shall be computed according to the following formula –

Class Standing (Recitation and Quizzes) 30% + Midterms 30% + Final Examinations 40%

Basic Text: REYES, THE REVISED PENAL CODE, Book I.

List of Cases for Class Discussion

Introduction

Steven Shavell, "Criminal Law," *Foundations of Economic Analysis of Law* 540
Barry J. Cavanaugh, *The Justification of Punishment*, 16 Alberta Law Review 43
Eric Gilman, "What Is Restorative Justice?"
Amy Rossabi, *The Colonial Roots of Criminal Procedure in the Philippines*, 11 Columbia Journal of Asian Law 175

Part I

Art. 2. Applicability of provisions

U.S. v. Bull, 15 Phil. 7
Del Socorro v. Van Wilsem, 744 SCRA 516, G.R. No. 194707, 10 December 2014
People v. Wong Cheng, 46 Phil. 729
People v. Look Chow, 18 Phil. 573
U.S. v. Ah Sing, 36 Phil. 987
People v. Lol-lo & Saraw, 43 Phil. 19

Art. 3. Definition of felony

People v. Ah Chong, 15 Phil. 488
People v. Oanis, 74 Phil. 257
Magsumbol v. People, 743 SCRA 188, G.R. No. 207175, 26 November 2014
People v. Gervero, G.R. No. 206725, 11 July 2018

Art. 4. Criminal liability

Result is different from what was intended
People v. Iligan, 191 SCRA 643
People v. Mananquil, 132 SCRA 198
U.S. v. Brobst, 14 Phil. 310
Garcia v. People, 597 SCRA 392, G.R. No. 171951, 28 August 2009

Impossible crime

People v. Balmores, 85 Phil. 493
Intod v. Court of Appeals, 215 SCRA 52
People v. Domasian, 219 SCRA 245
Jacinto v. People, G.R. No. 162540, 13 July 2009

Art. 6. Stages of commission
U.S. v. Eduave, 36 Phil. 209

Rape
People v. Orita, 184 SCRA 105
People v. Campuhan, 329 SCRA 270

Theft
U.S. v. Adiao, 38 Phil. 754
Valenzuela v. People, 525 SCRA 306

Robbery
People v. Lamahang, 61 Phil. 703
People v. Salvilla, 184 SCRA 671

Murder
People v. Borinaga, 55 Phil. 433
People v. Sy Pio, 94 Phil. 885
People v. Ravelo, 202 SCRA 655

Homicide
People v. Kalalo, 59 Phil. 715

Art. 11. Justifying circumstances

Self-defense
People v. Boholst-Caballero, 61 SCRA 180 People v. Alconga, 78 Phil. 366
U.S. v. Mack, 8 Phil. 701
People v. Sumicad, 56 Phil. 643
People v. Genosa, 419 SCRA 537

Defense of honor
People v. Luague, 62 Phil. 504
People v. De la Cruz, 61 Phil. 344
People v. Jaurigue, 76 Phil. 174

Defense of property
People v. Apolinar, 38 OG 2870
U.S v. Bumanglag, 14 Phil. 644
People v. Narvaez, 121 SCRA 389

Defense of reputation
People v. Chua Hiong, 51 OG 1932
People v. Pelayo, 64 OG 1991

Defense of relative
U.S. v. Esmedia, 17 Phil. 260

Avoidance of a greater evil
People v. Norma Hernandez, 55 OG 8465
Regina v. Dudley, 14 QBD 273, DC (1884)
Ty v. People, 439 SCRA 220

Fulfillment of duty
People v. Delima, 46 Phil. 738
People v. Belbes, 334 SCRA 161

Lawful order of superior
People v. Beronilla, 96 Phil. 566

Art. 12. Exempting circumstances

Insanity
People v. Bonoan, 64 Phil. 87
People v. Ambal, 100 SCRA 325
People v. Puno, 105 SCRA 51
People v. Dungo, 199 SCRA 860
People v. Yam-id, 308 SCRA 651
People v. Belonio, 429 SCRA 579
People v. Mirana, G.R. No. 219113, 25 April 2018

Somnabulism
People v. Taneo, 58 Phil. 255

Minority
RA 9344, Sections 6-7, 58
People v. Doquena, 68 Phil.
580 People v. Navarro, 51 OG 4062

Accident
People v. Bindoy, 56 Phil. 15
U.S. v. Tanedo, 15 Phil. 196
Pomoy v. People, 439 SCRA 439

Irresistible force/uncontrollable fear
U.S. v. Caballeros, 4 Phil. 350
U.S. v. Exaltacion, 3 Phil. 339

Insuperable cause
U.S. v. Vincentillo, 19 Phil. 118
People v. Bandian, 63 Phil. 530

Instigation and entrapment
People v. Lua Chu, 56 Phil. 44
U.S. v. Phelps, 16 Phil. 440

Art. 13. Mitigating circumstances

Lack of intention to commit so grave a wrong
People v. Ural, 56 SCRA 138

Sufficient provocation
People v. Leonor, 305 SCRA 285

Immediate vindication of a grave offense
U.S. v. Ampar, 37 Phil. 201
People v. Pajares, 210 SCRA 237

Passion or obfuscation
U.S. v. Hicks, 14 Phil. 217
U.S. v. De la Cruz, 22 Phil. 429

Illness
People v. Javier, 311 SCRA 576

Analogous circumstances
Canta v. People, 353 SCRA 250

Art. 14. Aggravating circumstances

Insult to public authorities
People v. Rodil, 109 SCRA 308

Dwelling
People v. Daniel, 86 SCRA 511

Nighttime
People v. Bermas, 309 SCRA 741

Evident premeditation
U.S. v. Manalinde, 14 Phil. 77

Treachery
People v. Sangalang, 58 SCRA 737

Ignominy
People v. Torrefiel, 45 OG 803
People v. Alfanta, 320 SCRA 357

Art. 15. Alternative circumstances

Intoxication
People v. Camano, 115 SCRA 688

Art. 17. Principals

Principals by direct participation
U.S. v. Diris, 26 Phil. 133

Conspiracy
People v. De la Cerna, 21 SCRA 569

Principals by inducement
People v. Ong Chiat Lay, 60 Phil. 788
U.S. v. Indanan, 24 Phil. 203
People v. Kiichi Omine, 61 Phil. 609

Principals by indispensable cooperation
U.S. v. Lim Buanco, 14 Phil. 472

Art. 18. Accomplices
People v. Nierra, 96 SCRA 1
People v. Doble, 114 SCRA 131
People v. Doctolero, 193 SCRA 632

Art. 19. Accessories
People v. Talingdan, 84 SCRA 19
See PD 1612; PD 1829

PENALTIES (Arts. 21-88)

Complex crimes
Enrile v. Salazar, 186 SCRA 217
Napolis v. CA, 43 SCRA 301
People v. Toling, 62 SCRA 17
People v. Salvilla, 184 SCRA 671
People v. Valdez, 304 SCRA 611

Continued crime
People v. De Leon, 49 Phil 437

Application of penalties
People v. Ducosin, 59 Phil. 109
People v. Formigones, 87 Phil. 658
People v. Simon, 234 SCRA 555

CICL
RA 9344, Sections 4(c) and (e), 20-56
Declarador v. Gubaton, 499 SCRA 344

Death penalty
RA 9346
See RA 7659
People v. Echegaray, 267 SCRA 682
Second Optional Protocol to the International Covenant on Civil and Political Rights
Callins v Collins, 510 U.S. 1141, Blackmun, J., *dissenting*
State v. Makwanyane, Case No. CCT/3/94 (available at www.constitutionalcourt.org.za)

PROBATION

Probation Law (PD 968 as amended)
RA 10707
Colinares v. People, G.R. No. 182748, 13 December 2011
Suyan v. People, G.R. No. 189644, 2 July 2014

EXTINCTION OF CRIMINAL LIABILITY (Arts. 89-99)

CIVIL LIABILITY (Arts. 100-113)

Persons civilly liable for felonies
Carpio v. Doroja, 180 SCRA 1

What civil liability includes
Heirs of Raymundo Castro v. Bustos, 27 SCRA 327

Extinction of civil liability
People v. Bayotas, 236 SCRA 239

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